

Part VI. Accountability

No. 14

Right to Information

Code

Cite this instrument as No. 14, Right to Information.

29 September 2026

Summary

A written request, an answer in 30 days, a closed list of exceptions, and an appeal the next day if the deadline is missed.

Members cannot check a decision they are not allowed to read. The exceptions are listed so they cannot be widened by a letter.

Part 1. Purpose

1.1 This instrument is how a member obtains a record. It is in addition to the copies required by the First Nations Financial Transparency Act, sections 7 and 8. Those sections still apply to the financial documents named in them.

Part 2. The request

2.1 A member makes a request in writing to the records officer. It must describe the record. The records officer must acknowledge it within 5 days and must say if the description is too vague to search.

2.2 The records officer must give a written decision within 30 days: release, partial release, or refusal. One extension of 15 days is allowed if, before day 30, the officer posts written reasons that name the number of records left to search. A second extension is void.

2.3 If no decision is given by the deadline, the request is deemed refused on the next day. The member may go to the appeal body that day. The appeal body must order release or confirm a refusal within 20 days. If the body misses day 20, it must post the request, and council honoraria stop until an order is posted.

2.4 No fee for a record of 50 pages or fewer. Above that, the fee must not exceed the cost of copying, which matches the limit in the transparency statute for the documents that statute covers. A fee invoice must be sent within the same 30 days. The days pause only while a fee over the free 50 pages is unpaid, and only after the invoice is sent.

Part 3. Exceptions

3.1 The records officer may refuse only these, and must name which one in the refusal:

- Personal information of another identifiable member, including health and student records.
- Advice that is solicitor and client privilege.
- A bid or proposal, until the day the contract is signed. On that day the exception ends.
- A record whose release would risk the safety of a named person. The officer must state the risk in writing to the appeal body at the same time as the refusal. The public refusal may omit the detail that creates the risk.

3.2 Any other reason, including embarrassment, a pending election, or a direction from a councillor, is void. The officer must release within 5 days of the appeal body saying the reason is not on the list. A councillor who directs a refusal for a reason not on the list must not handle records requests for 90 days.

Part 4. The log

4.1 The records officer must keep a public log: the date of the request, the date of the decision, and whether it was released or refused, with the exception number. Names of requesters are not on the log. The log is updated within 2 days of each decision. A log that is more than 5 decisions behind must be posted current within 2 days of the appeal body saying so, or the body must name a new records officer within 10 days.

Part 5. Amendment

5.1 Council must not amend this right-to-information instrument by resolution. A resolution that tries is void on the day it is signed. The appeal body must post that fact within 14 days.

5.2 The electoral officer posts the full text at least 30 days before the vote. A vote on shorter notice is void. The officer posts the count within 3 days.

5.3 The change passes if a majority of the votes cast are yes and at least 25 percent of the electors vote. A change that would remove a check named in the constitution passes only if a majority of all electors vote yes. If that count is not met, the change is void.

5.4 The text comes into force the day after the electors adopt it under this Part. It does not repeal a law already in force unless the electors also meet that law's own replacement rule.

5.5 The appeal body reviews the text every 4 years from that day and posts a written report within 60 days. The report does not change the text.